

U.O.Note No.2751/SC.E/95-1, Genl.Admn. (SC.E) Dept., dt.16.09.1995: Sanction of prosecution to be issued within stipulated time.

Subject Heading : Sanction of prosecution - to issue within 45 days

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1. U.O.Note No.450/SC.D/87-1, G.A.(SC.D) Dept., dt.20.07.87
 2. Memo.No.700/SC.D/88-4, G.A.(SC.D) Dept., dt.13.02.89.

The attention of all the Departments of Secretariat is invited to the U.O.Note 1st cited wherein instructions were issued to the effect that orders according sanction of prosecution shall be issued within 45 days from the date of receipt of the final report of the Anti-Corruption Bureau. In para 1(3) of the Memorandum second cited, these instructions were reiterated. Now that the Andhra Pradesh Vigilance Commission is functioning and the Scheme of Vigilance Commission provides for routing the reports of Anti-Corruption Bureau through the Vigilance Commission, this 45 days period is to be reckoned from the date of receipt of the advice of the Vigilance Commission along with the report of Anti-Corruption Bureau. The Director General, Anti-Corruption Bureau has brought to the notice of the Government that the issue of sanction orders for prosecutions are being delayed inordinately by the Departments of Secretariat and that therefore, the Anti-Corruption Bureau could not take further action against the Accused Officers concerned. All the departments of Secretariat are, therefore, requested once again to take prompt action on the recommendations of the Director General of Anti-Corruption Bureau, as reviewed and advised by the Andhra Pradesh Vigilance Commission and to ensure that necessary orders on such recommendations are issued within the time stipulated as above, under intimation to Director General, Anti-Corruption Bureau and Andhra Pradesh Vigilance Commission.